

Hello, This is your customer service rep again. We have been busy!

WE WON OUR RIGHT TO DO BUSINESS IN A LEGAL CONTEST WITH THE FTC IN A BATTLE OF THE EXPERTS...

This has been a really rocky road. It is so amazing that President Obama has ordered all the American car makers to get another 10 miles per gallon out of their cars, and we typically increase the mileage just with the HAFC kit by at least that with just about anything we do when it is done right. In other words, right now there is only ONE entity in this country that can take just about any make and model of car and exceed the Presidents orders RIGHT NOW! That is incredible, because in January the FTC tried to shut our main company the supplier of the HAFC kits down. In a one of a kind expert report, the FTC has an expert physicist that claimed that it is IMPOSSIBLE for anyone (not just us) to get more than a 4% improvement in the fuel economy of any American made car! Because of that purported FACT, it made all our representations of getting over 50% improvement the majority of the time impossible! This expert claimed that about 96% of the gasoline in a vehicles is burned (leaving only 4% to leave the tailpipe.) While this is not untrue, that does not mean that the burned fuel is making any power on the wheels, instead most of it is being burning in the catalytic converter UNDER the vehicle for NO mechanical benefit to the owner of the car. This report, while technically true, was irrelevant to the nature of the internal combustion engine process and the overall fuel economy of a vehicle. The FTC's expert report became the justification to put us out of business. Imagine the President of the United States and all his expert advisors ordering the car makers to do what this FTC expert claims is impossible. Imagine the FTC of this administration trying to shut down the company that can give the President what he wants.

The FTC came in and on the strength of this expert got a judge, ex parte (means they ONLY heard ONE side of the story) to order that all of Dutchman Enterprises' bank accounts be frozen and the company's assets be confiscated and the company be restricted from making any claims or doing any business. They froze the accounts with hundreds of thousands of dollars in them on Thursday, would not even allow the paychecks for the employees to be paid on Friday. All the employees went home and the business was shut down based upon no complaints at all to the FTC... ONLY this report from the expert that stated that what we were claiming (and what the President was ordering to happen by 2011) was impossible. It was a disaster for us!

We tried to get the judge to at least give us access to a portion of our funds to be able to hire a lawyer, but the FTC refused to grant us even that one small right to counsel. So, the leader of our project tried to mount a defense without any legal counsel. They even froze his personal accounts and the company had nothing to operate on or use to defend itself. Our guys went to court and the judge soon realized the injustice of it all and allowed us to have money for our defense. We also asked if we could use some of our own money to hire our own expert physicist to rebut their Doctor of physics. The judge allowed us to

spend \$5,000 for that purpose. That turned out to be enough, because a Harvard engineer that had been following this project volunteered to help out for free, and it turned out, his father has a double doctorate in materials and in physical engineering with a master's degree in internal combustion engine design, and is world renown with almost 100 scientific abstracts published and books translated into most languages of the world. The father was overseas and volunteered to come to the USA to give his opinion if we would just pay his expenses. We also got the ex Vice President of the Society of Automotive Engineers who designs internal combustion engines for GM, Volvo and Saab give us a report on his opinion as well. The cost for both of these experts came to \$5,000.

So, on February 5th, after a month of no activity and frozen accounts that almost destroyed our business, we finally were ready to be heard in opposition to the FTC's heavy handed and totally unjustified attack on us. We had a hearing before judge Shipp in Federal District Court. In the morning they put on their expert who stood by his report. The judge was originally shocked to discover that the FTC had not ever gotten even on complaint to justify this action. Our lawyer cross examined their expert and actually got him to agree with every single point our experts were going to prove that day. He showed him a report from the department of Energy showing that it was possible for the fuel efficiency of cars to be increased by 50% by just injecting hydrogen into the combustion chamber to help the gasoline burn better. Our lawyer asked the expert if he thought the DOE was also lying about that fact. Our lawyer pointed out government web sites that state that vehicles are only 15%-20% efficient while this expert was saying that vehicles are 96% efficient. Our lawyer showed their expert facts and reports from car makers, NASA, MIT, and even the encyclopedia to prove the folly of his assumptions. It was not a very good day for their physicist. He was caught in defending physical principles that are, on their face, true, but not relevant.

Then our experts explained to the judge why the report of their expert was not relevant to the issue of fuel economy, and it became clear to the judge that their cryogenics expert (even by his own admissions) was a poor selection on the part of the FTC for an expert to give an opinion on internal combustion engines. The long and short of it is that we PROVED in that courtroom on the 5th of February that our HAFC technology could actually increase the efficiency of vehicles (in the unanimous opinions of all our experts) by at least as much as 200% without violating even one of the laws of physics. The judge was convinced, and ruled that our bank accounts be unfrozen and that we not be restrained from doing any activity that we are currently doing and that we do not, in his opinion, pose a danger to consumers.

If you want to read the whole story, read below.

http://pesn.com/2009/02/13/9501523_Dennis_Lee_victorious_against_FTC/

and Dutchman Win Round Against FTC

In a major victory for the science of hydrogen-boost related systems, Dennis Lee and Dutchman Enterprises were exonerated after a month of being shut down by an FTC temporary restraining order for their super-mileage claims.

by 
Pure Energy Systems News
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After a month of having their assets and website frozen by a US Federal Trade Commission (FTC) injunction, [Dennis Lee](#) and Dutchman Enterprises were exonerated Wednesday by NJ Federal Judge, [Michael Shipp](#) who ruled in favor of Lee and Dutchman, who have been selling a "[Hydrogen Assist Fuel Cell](#)" (HAFC) that they "guarantee" to improve mileage by at least 50%. Lee is free of all encumbrances.

In a thirteen page statement meticulously explaining his reasons, the judge apparently pointed out that the FTC's charge was inadequate, and that the expert witness opinion by FTC's physicist, Dr. Halperin, was trumped by the internal combustion expert witness who spoke in defense of Dutchman. The physicist who the FTC produced as a key witness, was not an expert in internal combustion engines, and had given his opinion that the claims being made by Lee's group were "impossible" to achieve. The judge pointed out that Halperin never had gotten a HAFC kit, never put it together, never tested it, never ran data. The defense, on the other hand, had produced a great deal of evidence in support of their claim, with an expert



The [Hydro Assist Fuel Cell](#) kit combines three fuel saving technologies along with a sophisticated computerized emission system optimizer. It includes 1) an electrolysis unit for on-board hydrogen injection; 2) a vaporizer/ionizer using magnets; and 3) additives that include acetone and xylene.

witness who specializes in internal combustion engines.

The overwhelming number of positive testimonies, the "Orange Test" before-and-after documentation and the ironclad affidavit swayed the judge to quickly decide that Dutchman Enterprises was indeed being unjustly railroaded. Kurt Anaheim, a dealer of the HAFC kit, says that they have seen "hundreds if not thousands of gasoline powered cars and trucks getting 50% or more mileage gain". ([Ref.](#))

Dr. Halperin admitted to Dutchman's attorney that he does not have a Ph.D. in engine technology, and acknowledged that his expertise and his report was based on his background in Cryogenics. In continued cross examination, the attorney asked Halperin other questions revealing that Halperin knew very little about how an internal combustion engine worked, and in particular had no knowledge of the very short period of time there is to get energy out of the fuel while it's burning in the piston chamber during the power stroke of the engine, or that this is the only time the burn puts any power to the wheels. ([Ref.](#))

Regarding the "expert" testimony that such mileage improvements were "impossible," one of the points that Lee's defense argued to the judge was something to the effect: "Do you think the President of the United States and his advisors don't know what they're talking about when they call for an increase in the mileage of the nation's vehicles, expecting at least a 10 mpg improvement?"

Anaheim says: "Our Hydro Assist Fuel Cell technology prepares and volatizes the fuel prior to burning so that it burns more completely during that short duration of the power stroke, producing more power, which we are able to convert to economy, while reducing pollution." ([Ref.](#))

In a conference call last night with his extensive network, Lee took three hours to describe the situation: what led up to it, how it unfolded, the ramifications for himself and the company, then taking questions from his listeners.

"We tore him up on the stand," he said, regarding the "expert" physicist witness.

This is only the second time in New Jersey's history that the FTC has lost a case. What makes this more astonishing is the extent to which they tied Lee and Dutchman's hands behind their backs, even going so far as freezing Lee's personal bank account. In the process of interviewing lawyers for his defense, Lee recounted how one after another would cower in fear, telling him there is no way he could win against the FTC -- that the FTC always gets their way, even if they're wrong. "All you had to do was say 'FTC', and lawyers were shaking in their boots."

Lee, who has been in court twelve times now, but who has never had a trial by jury, remarked that finally he had experienced justice being served, not miscarried.

Since at least the early 1990s, Lee has been having one run-in after another with government agencies who accuse him of some kind of fraud, yet who have never

proven the same in a court of law. He views these actions as being inspired by the good ol' boy's club, in bed with big oil and the auto makers to suppress the emergence of technologies that move us toward kicking our addiction to oil. So with this case victory, he said, "It's always nice to win against the DC Mafia".

Lee expects that the FTC will try to appeal this, to save face; and he said he is prepared to go the distance. He told those on the call: "You and I should be unrelenting. The truth for me is worth dying for. There is nothing they can threaten me with that will cause me to bend my knee to injustice."

At the same time, he said he is prepared to offer the FTC a graceful way to back out, admitting that they had made a mistake -- in which case Lee would stand down. "The smartest thing they could do is say, 'We made a mistake, we got a guy..., he screwed up, we're going to back down.'"

But if they persist, he is prepared to file a class action suit on behalf of all his dealers and himself who have been seriously financially impaired by the temporary injunction, as well as maligned.

Dutchmann took a major hit in the process, losing \$750,000 USD in an inventory fire sale. They now have nothing. However, that will not keep the dealers from being able to move forward, due to the way the company was set up, thanks to a sister company that is able to keep things rolling.

Lee is willing to forgive the \$750k loss if the FTC will admit its mistake and go away so they can get on with their business. "Dutchman isn't in this for the money. It won't go after the money if we can just get on with life." He said he actually looks forward to getting out among the car dealerships and mechanic training classes to help promote the technology on the ground.

Lee emphasized the many inconveniences caused by the month-long injunction, with employees not being paid, dealers almost losing their livelihood, suppliers not being paid, manufacturers not being paid -- and everyone being treated with suspicion as if they were part of some scam. "We have a strong case for slander ... and possibly malfeasance." Lee reported that in the process of this action, agents had taken proprietary documents not related to this case.

"They accuse us of misrepresentation, yet they themselves are guilty of misrepresentation."

Assets were frozen and all sales had to be stopped, and the company was virtually decimated. Yesterday, with the funds being unfrozen, Lee immediately paid his employees, and sales are commencing. The [PICC website](#) was taken down, but it will be back up today, paradoxically Friday the 13th, with the details of this judgment.

There are around 100 manufactures who have "plenty" of HAFC kits for distribution.

The "Genesis Project", which will be carrying the torch, is owned by the dealers.

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Isn't it Time for the Government that Claims to Want Energy Independence and To Stop Pollution To Hear from The American People?

Why is it that for us to try to bring our answers to the energy problems we are constantly being harassed by the very people who claim to be looking for them? Look at the history of our struggle in a world that is looking for what we have. In our formative stages we developed the PICC breakthrough. The Bush administration was so impressed that they sent an advisor to the president to see what we were doing. He got so excited about what we showed him that he went back to the President and supposedly was going to host a demonstration with the Chief of Staff at the White House to get us with the DOE and the EPA and sort of force them to test our pollution free device. That ended up wasting a year on promises (all of which are on tape) none of which were ever delivered. Then the advisor became part of a department to find alternative energy sources and their top advisor had to confirm the interest of the President's man who came here, originally. ACORE's expert reluctantly came from DC and when we showed him what we could do he got very excited. He wanted to set us up with the Pentagon and we refused to deal with them. His excitement, and phone calls, were also caught on tape. That became another series of promises and then we were suddenly dropped like a hot potato. It was clear that we were on our own. We then announced the PICC project and our research revealed that it had far more potential than even we had ever imagined. You got involved from ads to encourage you to give us the public support base we needed since it was obvious that conservation talk was just that... talk. We had a major breakthrough and so we went to DC on our own without an invitation and at the ACORE Renewable Energy Expo, we rallied some excitement from the people, and did our best to embarrass the government phonies who insist on finding solutions that big business will be able to use to control the people. We are developing the PICC now to actually be able to run any vehicle at well over ten times the current mileage even on unrefined crude oil with near zero pollution! In the meantime we could take our HAFC and provide double mileage on the average by just getting car makers to stop their planned obsolescence program in which, through unburned fuel, they make carbon build up and sludge to wear down their engines thereby destroying the fuel economy of their cars with their computer controls. We made major inroads with Ford. They really wanted a relationship with us on the PICC, but we insisted that they get involved in the HAFC to earn the bigger relationship. We even provided them with 50 HAFC units to test over a 60 day test period. It was going great until one of our dealers misused the Ford Logo and that brought the Ford family into the program. With the car makers trying to get bail out money from the government a relationship with Ford was not possible. Ford denies they ever tested the units we sent to them and all the talks and meetings we tape recorded. They did not want to upset the government by actually working with us to deliver what all of them SAY they want. Now, along comes President Obama (a new President from the other aisle.) He has ordered the car makers they are bailing out that within three years, they MUST increase mileage by less than we have demonstrated time after time we can deliver now. His administration's own agency (the FTC) is trying to kill us. Will you please help us now? We have been struggling

against everyone who claims to want what we are doing that is in your best interests for close to a decade now. How much longer must we fight the officials who claim to be looking out for you? I ask who we can get to protect us from the people we the people have elected to protect us? Will you please at least write a letter to Rahm Emmanuel, the White House Chief of Staff, and ask him why the administration's FTC is trying to put a company out of business that is trying to provide the answer to President Obama's directive to the auto industry? This is a technology that can exceed the President's expectations by even retrofitting not only new cars, but also includes an answer for every car on the road. The FTC has attempted to stop it on the basis of an expert report with a firm stance that what President Obama has ordered is technically impossible to do, making it look like President Obama and his advisors are also misrepresenting what is possible to the public. So far it has resulted in evidence offered in a court of law that impressed the judge that this company really may have the answer. The judge ruled against the FTC and in favor of this little company, Dutchman Enterprises, LLC, in New Jersey. So, why would the government be trying to stop them rather than looking into what they have and giving them every opportunity to prove they really can deliver? Something is not right here! **PLEASE, IMMEDIATELY, WRITE THAT LETTER TO THE WHITE HOUSE CHIEF OF STAFF AND SEND A COPY TO PRESIDENT OBAMA. WHETHER YOU VOTED FOR THEM OR NOT THEY ARE YOUR ADMINISTRATION!** The address for both letters is 1600 Pennsylvania Avenue, Washington D.C. 20502. Please get everyone you know to read this letter and write their own letter to the Chief of Staff, Rahm Emmanuel, and the Commander in Chief, President Obama! Let's get some answers before it is too late! We only want a fair chance to prove what we can do for the American people! We can, and will, provide the White House with expert opinions and scientific evidence that we are the real deal.